

The elements of a cause of action for breach of contract are (1) the existence of a valid contract, (2) the plaintiff's performance or excuse for nonperformance, (3) breach, and (4) damages. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 447.)

The complaint at hand sufficiently alleges all elements of breach of contract. It states that on June 5, 2019 the parties entered in a written contract. It attaches a copy of that contract so the terms can be seen. It states Plaintiff's performance via provision of a line of credit and Defendant's breach on February 5, 2025 via nonpayment. It states Plaintiff's damages as \$15,214.92.

Defendant's claim that there is an arbitration agreement in the contract is a matter for a motion to compel arbitration, not a demurrer.

Defendant's demurrer is overruled.

TOP GLASS, LLC v. FACTORY OS, INC., ET AL.
Case No. CU23-04060

Motion to Amend Judgment

TENTATIVE RULING

Judgment Creditor Top Glass LLC's motion to amend the judgment to add Harbinger Production, Inc. and Harbinger Group, Inc. as additional judgment debtors is granted in part and denied in part.

A court has the authority to amend a judgment to add a judgment debtor pursuant to Code of Civil Procedure section 187. (*Carr v. Barnabey's Hotel Corp.* (1994) 23 Cal.App.4th 14, 20.) The procedure is an appropriate method "by which to bind new individual defendants where it can be demonstrated that in their capacity as alter ego of the corporation they in fact had control of the previous litigation, and thus were virtually represented in the lawsuit." (*McClellan v. Northridge Park Townhome Owners Ass'n* (2001) 89 Cal.App.4th 746, 752.) It may be used when a successor corporation is shown to be a continuation of the predecessor corporation or the transaction appears to have been entered into fraudulently to escape liability for debts. (*Id.* at 753-755.)

The court finds that Harbinger Production, Inc. is merely a continuation of Judgment Creditor. Judgment Creditor establishes that Judgment Debtor assigned its assets to Harbinger Production, Inc. while its action was pending against Judgment Debtor. (Decl. of Gabriel, ¶ 6, Exh. 1.) Harbinger Production, Inc. appears to have the same executive staff as Judgment Debtor. (*Id.* at ¶ 7.) Harbinger Production, Inc. shares the same principal address as Judgment Debtor. (*Ibid.*) Accordingly, Harbinger Production, Inc. shall be added as a judgment debtor.

However, the motion is denied as to Harbinger Group, Inc. Not only has Harbinger Group, Inc. not been served with the motion papers (Proof of Service (6/3/26)), Judgment Creditor establishes only that Harbinger Group, Inc. is merely the parent company of Harbinger Production, Inc. and that Harbinger Group, Inc. provided Harbinger Production, Inc. with some funding. (Decl. of Gabriel, ¶ 8.) A parent corporation is not exposed to liability for the obligations of a subsidiary simply because the parent contributed funds to the subsidiary to assist the subsidiary in meeting its financial obligations and not to perpetuate a fraud. (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 539.)

HORMIGAS v. STERLING ASSET MANAGEMENT COMPANY
Case No. CU25-03830

Motion And Motion to Compel Defendant Community Housing Opportunities Corporation to Respond to Plaintiff's Requests for Production of Documents, Set Two; Memorandum of Points and Authorities in Support Thereof; Request for Monetary Sanctions

TENTATIVE RULING

On its own motion, the Court continues this matter to September 22, 2026, at 9:00 a.m. in Department 3 to be heard concurrently with the three Motions to Compel, this matter is deemed submitted.

SWEENEY v. CAL. REG'L WATER QUALITY CONTROL BD., SAN FRANCISCO BAY REGION, ET AL.
Case No. FCS048136

Motion to Enforce Contempt Judgments; Motions to "Compel Production of a Post-Judgment Accounting"

TENTATIVE RULING

Motion to Enforce Contempt Judgment

Parties to appear.

Judge Carringer entered the following orders and judgments of contempt against Judgment Debtor John Sweeney:

- 1) on August 26, 2022 for willful disobedience of the court's May 20, 2022 discovery order, repeated failure to appear for examination, and willful disobedience with the CAO Injunction;